

107	Arevalo vs. National Signal LLC 2024-01382811	1.Motion for Preliminary Approval re Class/PAGA Settlement 2. Order to Show Cause re: Monetary Sanctions 1. Motion for Preliminary Approval of Class and PAGA Settlement The Court has reviewed the supplemental materials provided by Class Counsel and finds that they adequately address the previously identified issues. Accordingly, Plaintiffs Jaime Oswaldo Arevalo and Hector Alonso Velasquez’s Motion for Preliminary Approval of Class Action and PAGA Settlement is GRANTED. This is a putative wage-and-hour class action and PAGA matter. On 2/27/2024, Plaintiffs Jaime Oswaldo Arevalo and Hector Alonso Velasquez, individually and on behalf of all others similarly situated, filed a class action complaint against Defendants National Signal LLC and H&S Beam LLC. (ROA #2.) The operative complaint is the first amended complaint (FAC), filed on 5/14/2024, which alleges various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. On 6/18/2025, Plaintiffs filed the instant motion for preliminary approval of the class action and PAGA settlement and submitted the Joint Stipulation of Class Action and Private Attorneys General Act Settlement and Release (“Settlement Agreement”) and Class Notice for the Court’s review. The Motion seeks preliminary approval of the parties’ proposed settlement for the gross settlement amount (GSA) of \$460,000. On 11/6/2025, the Court continued the first hearing on the motion and asked Class Counsel to address various issues. (ROA #45.) Counsel then submitted supplemental materials, including a revised version of the Joint Stipulation of Class Action and Private Attorneys General Act Settlement and Release (“Amended Settlement”) and an amended Class Notice. Based on a review of all papers submitted, including the Amended Settlement Agreement, the Court finds the settlement falls within the range of what is considered fair and reasonable, subject to a final determination at the Final Approval hearing. Within five (5) court days, Class Counsel must provide a further revised Proposed Order with the following revisions: 1. The revised proposed order submitted at ROA #65 is missing the attached revised Class Notice. The further revised proposed order should attach the revised and approved Class Notice. 2. In ¶ 1, the ROA number listed for counsel’s supplemental declaration is incorrect—the correct ROA number is 67, not 66. Also, the citation provided for counsel’s supplemental declaration references ROA #35, which was actually counsel’s <i>original</i>, not
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		<i>supplemental</i>, declaration. This is confusing because there is no explanation for why the original declaration is being cited. The Motion for Final Approval will be heard on 1/7/2027 at 2:00 p.m. in Department CX102. All papers for the Motion for Final Approval must be filed and served no later than sixteen (16) court days before the hearing date. If Class Counsel cannot meet this deadline, then they must request a continuance of the hearing. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. At the Final Approval hearing, evidence supporting the request for an award of attorneys' fees should be presented in the form of time records or a summary of time spent on the substantive tasks, so as to enable the Court to evaluate the lodestar and costs claimed. Class Counsel should state by declaration whether time records were kept and created contemporaneously or otherwise. The Court also reminds Class Counsel that although a determination regarding the amount of the attorneys' fees award will not be made until final approval, the Court is unlikely to approve attorneys' fees in excess of thirty percent (30%) of the GSA absent unique circumstances. As a result, Class Counsel should address whether any such unique circumstances exist. Additionally, at the Final Approval hearing, each Plaintiff and Class Counsel must provide detailed declarations describing circumstances to justify the requested enhancement award and addressing the factors set forth in <i>Golba v. Dick's Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251, 1272, and <i>Clark v. American Residential Services, LLC</i> (2009) 175 Cal.App.4th 785, 804. Each Plaintiff must provide an estimate of the hours spent participating in this litigation. Plaintiffs to give notice of this Court's ruling, including to the LWDA, within five (5) court days, and file proof of service. 2. OSC re Monetary Sanctions Against Class Counsel The Court is awaiting a declaration explaining counsel's failure to comply with the Court's 11/6/2025 order.
108	Higgins vs. Spigen Inc. 2024-01376537	Motion for Approval of PAGA Settlement The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a \$190,000 PAGA settlement. The court has the following questions and comments: 1. Was plaintiff's untimely declaration (ROA 98, 100) submitted to the LWDA? Plaintiff must file with the court an actual proof of service identifying the specific document(s) served on the LWDA, when plaintiff served the document(s), and how service was effected. <u>As to the settlement:</u>